Court Records Request

Contact Information

First Name *
AshLe

Last Name *
Penn

Do you work for a government agency? *
- ○ Yes
- ● No

Is this request for an upcoming hearing? *
- ○ Yes
- ● No

Email *
ashlepenn.ap3@gmail.com

Phone Number *
424-242-3374

Case Information

Circuit Court and Tax Court records can be found using OJD's Online Records Search, Appellate Court records and other records that cannot be located via the Online Records Search, contact the court where the case is filed.

Court *
Washington

Case Party Names *
State of Oregon v. Penn

Case Number(s) *
24CR27775

Request Information

For definitions, questions, or accessing records, please visit Statewide Records Request Website.

Request Type *
Regular

Case Documents Requested *

Pursuant to ORS 192.311 et seq. (Oregon Public Records Law), the constitutional guarantees of due process under Article I, Section 10 of the Oregon Constitution and the Fourteenth Amendment to the United States Constitution, and this Court's inherent obligation to maintain and provide access to its official records, the undersigned defendant hereby demands full and complete disclosure of every written record in the above-captioned case file.
I. Records Requested

Defendant requests immediate disclosure of each of the following categories of records, without limitation to what is enumerated, as this list is illustrative and not exhaustive:

All charging documents, including the complaint, information, indictment, and any amendments thereto, together with all probable cause affidavits and supporting declarations.

All orders of the court, including release orders, bail orders, orders setting or modifying conditions of release, no-contact orders, competency orders, case management orders, and any bench warrant or warrant of arrest, together with every affidavit, declaration, or application submitted in support of such warrant.

All minute entries and hearing summaries for every proceeding held in this matter, including arraignment, bail hearings, pretrial conferences, motions hearings, and any ex parte communication reduced to writing.

All written plea offers, plea agreements, and plea petitions, including any communications from the State to defense counsel or to the Court memorializing a plea offer, whether accepted or rejected.

All police reports, incident reports, supplemental officer reports, and investigative reports submitted to or filed with the Court in connection with this matter.

All evidence and discovery materials in the Court's custody or received by the Court, including the State's discovery disclosure letter, any Brady or Giglio disclosures, protective orders governing discovery, and any supplemental disclosures.

All motions filed by any party, including motions to suppress, motions to dismiss, motions in limine, and all responsive briefs and the Court's written rulings thereon.

All notices of appearance filed by any attorney of record, including any substitution of counsel, appointment of counsel orders, and financial affidavits supporting any indigency determination.

All witness lists and witness statements filed with or submitted to the Court.

All subpoenas issued and all proofs of service filed in this matter.

The grand jury impanelment order and, to the extent not separately sealed by court order, all grand jury materials submitted to the Court.

All communications between the Court and any party, including correspondence, written notifications, case scheduling notices, and any written communication from the clerk's office to any party.

All records related to bail, bail forfeiture, bail reinstatement, and any surety documents.

The complete register of actions and docket sheet reflecting every entry in the case from inception to the date of this request.

All judgments, including the judgment of conviction, any amended judgment, restitution orders, and sentencing orders with all conditions of probation or supervision.

All audio recordings of court proceedings on file with the Court, or in the alternative, certified transcripts of all proceedings for which recordings exist.

All interpreter records, including records of interpreter qualifications and dates of service.

Please specify the filing (and file date if available) you are seeking, e.g. Judgment filed 2/5/22, Order filed 7/6/19.

Number of Copies *

1

Preferred Delivery *

Email

Additional Information

This Court has previously found the undersigned to be an indigent defendant, as reflected in the appointment of counsel order on file in this matter. Accordingly, Defendant requests that all fees associated with this records request be waived in their entirety recognizing that meaningful access to the court record is a prerequisite to a fair hearing. Denial of the fee waiver is requested to be issued in a

written order stating the specific grounds.

For each category of record identified above that does not exist in the Court's custody or that the Court declines to disclose, Defendant requests written confirmation specifically identifying:
(1) the document type not produced;
(2) whether the Court's position is that the record does not exist, has been destroyed, or is withheld on a stated legal basis; and
(3) the specific legal authority for any withholding.

Provide any additional information. Examples: purpose of request, indicating if multiple types of documents are needed (e.g., certified and regular copies), or if the documents are requested by a third party (e.g., Social Security, Secretary of State, etc.).